

Conditions of Contract — demo extract

Cadangan Pembangunan ABC Residence · Contract ABC/2026/014 · written for the VO-AI demo in the style of a building contract; not the text of PAM 2018 or any published form

11. Variations

11.1 Meaning of Variation

In these Conditions a Variation means a change to the design, quality or quantity of the Works shown in the Contract Documents, including the addition, omission or substitution of any work, materials or goods, instructed in writing by the Architect.

11.2 Instructions for Variations

The Architect may issue instructions requiring a Variation and the Contractor shall comply with them. An oral instruction shall be confirmed in writing by the Contractor within 7 days, and takes effect as an instruction unless the Architect dissents in writing within 7 days of receiving the confirmation.

11.3 Valuation of Variations

Variations shall be measured and valued by the Quantity Surveyor. Work of similar character executed under similar conditions to work priced in the Contract Bills shall be valued at the Contract Bills rates. Where the work is not of similar character or is not executed under similar conditions, the Contract Bills rates shall be the basis of a fair valuation. Where there are no comparable rates, the work shall be valued at fair rates agreed between the Quantity Surveyor and the Contractor, supported by quotations or rate build-ups. An omission shall be valued at the Contract Bills rates.

11.4 Submission of Variation Claims

The Contractor shall submit to the Quantity Surveyor all documents necessary for the valuation of a Variation, including measurements, quotations and rate build-ups, within 28 days of completing the varied work. The Quantity Surveyor may request further information, which the Contractor shall provide within 28 days of the request.

11.5 Period for Valuation

The Quantity Surveyor shall complete the valuation of a Variation within 30 days of receiving the documents required under Clause 11.4, and the value so ascertained shall be included in the next Interim Certificate.

23. Extension of Time

23.1 Notice of Delay

If the Contractor considers that the completion of the Works is or will be delayed by a Relevant Event, including a Variation, the Contractor shall give written notice to the Architect within 28 days of the start of the delay, stating the cause and its likely effect on completion. A Contractor who fails to give notice within that period shall not be entitled to an extension of time for that event.

23.2 Particulars and Decision

The Contractor shall submit full particulars of the claim for extension of time, with an updated programme showing the critical path before and after the event, within 28 days after the end of the delay. The Architect shall grant a fair and reasonable extension of time, or give reasons for refusing one, within 6 weeks of receiving the particulars.

30. Certificates and Payment

30.1 Interim Certificates

The Architect shall issue Interim Certificates at monthly intervals, stating the value of work properly executed including the value of Variations ascertained under Clause 11.5. The Employer shall pay the amount certified within 30 days of the date of the certificate.